

UPSC INDIAN POLITY

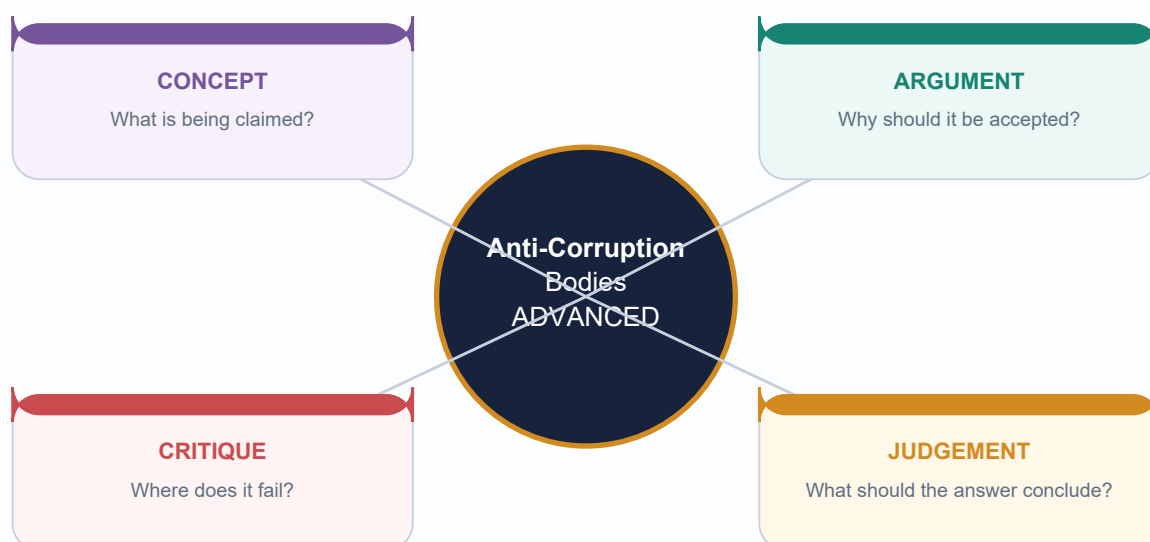
CVC & CBI — Anti-Corruption Bodies — ADVANCED / COMPLETE Deep-Learning Visual Notes

Indian Polity · GS Paper II · Prelims + Mains

Layer 1: Basic foundation · Layer 2: Advanced constitutional and exam depth

Sources: CVC-and-CBI.md + 37_CVC-and-CBI.md

Learning cards: 17



Facts from official sources | Inferences clearly marked | No fabricated data

HIGH UPSC RELEVANCE

HIGH

Foundation · Core Foundation

GS-II Indian
Polity

INTRO & ORIGIN

greater than **Subject:** Polity · **Tier:** Basic (foundation) · **GS-II***Foundation learning layer: concepts → constitutional detail → UPSC application.*

STATIC THEORY

• greater than □ = from book · □ = current link · □ = mnemonic. *Deep dive → advanced/37_CVC-and-CBI.md.*

MEMORY HOOK

greater than □ = from book · □ = current link · = mnemonic. *Deep dive → advanced/37_CVC-and-CBI.md.*

MUST-KNOW FACTS

1. greater than = from book · □ = current link · □ = mnemonic. *Deep dive → advanced/37_CVC-and-CBI.md.*

MAINS ANGLE

STUDY LINK

CVC & CBI — Anti-Corruption Bodies —
ADVANCED / COMPLETE → Core
Foundation

HIGH

Foundation · Snapshot

GS-II Indian
Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Item	CVC	CBI
Born	1964 (exec resolution)	1963 (Home Min. resolution)
Nature	Statutory (CVC Act 2003)	NOT statutory — runs on DSPE Act 1946
Recommended by	Santhanam Committee	Santhanam Committee
Head	Central Vigilance Commissioner + ≤2 VCs	Director (2-yr tenure)

MAINS ANGLE

STUDY LINK

CVC & CBI — Anti-Corruption Bodies —
ADVANCED / COMPLETE → Snapshot

HIGH

Foundation · Core idea

GS-II Indian
Polity

INTRO & ORIGIN

Both are **anti-corruption** bodies — but **neither is constitutional**. **CVC** oversees vigilance and (only for **PC-Act 1988** cases) **superintends the CBI**. **CBI** is the Centre's main **investigating agency**, needing **state consent** to operate in states.

Foundation learning layer: concepts → constitutional detail → UPSC application.

CORE IDEA: RECALL MAP

Core idea



Dimension 1

Both are anti-corruption bodies — but neither is constitutional. CVC oversees vigilance and (only for PC-Act 1988 cases) superintends the CBI. CBI is

Dimension 2

greater than □ CVC panel: PM + Home Minister + LoP(LS).
CBI Director panel: PM + CJI/SC judge + LoP(LS).

Dimension 3

greater than □ CBI = "caged parrot" (SC 2013) — no own statute, needs state consent.

STATIC THEORY

- greater than □ **CVC panel**: PM + Home Minister + LoP(LS). **CBI Director panel**: PM + CJI/SC judge + LoP(LS).
- greater than □ **CBI = "caged parrot"** (SC 2013) — no own statute, needs state consent.

MEMORY HOOK

greater than CVC panel: PM + Home Minister + LoP(LS). CBI Director panel: PM + CJI/SC judge + LoP(LS). |
greater than CBI = "caged parrot" (SC 2013) — no own statute, needs state consent.

MAINS ANGLE

STUDY LINK

CVC & CBI — Anti-Corruption Bodies —
ADVANCED / COMPLETE → Core idea

HIGH

Foundation · Must-Know Facts

GS-II Indian
Polity

INTRO & ORIGIN

- CVC statutory since **2003** (after **Vineet Narain** case 1997); CBI powers from **DSPE Act 1946**.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS: RECALL MAP

Must-Know Facts

Dimension 1 ☐ CVC statutory since 2003 (after Vineet Narain case 1997); CBI powers from DSPE Act 1946.	Dimension 2 ☐ CVC = multi-member (CVC + ≤ 2 VCs), 4-yr/65, removed by President (SC inquiry).
Dimension 3 ☐ CBI Director appointed by a PM + LoP + CJI panel; 2-yr security of tenure.	Dimension 4 ☐ CBI vs NIA: NIA $\rightarrow$ terror; CBI $\rightarrow$ corruption/economic/organised crime.

STATIC THEORY

- ☐ CVC = multi-member (CVC + ≤ 2 VCs), **4-yr/65**, removed by **President** (SC inquiry).
- ☐ CBI Director appointed by a **PM + LoP + CJI** panel; **2-yr** security of tenure.
- ☐ **CBI vs NIA**: NIA $\rightarrow$ terror; CBI $\rightarrow$ corruption/economic/organised crime.

MUST-KNOW FACTS

1. CVC statutory since **2003** (after **Vineet Narain** case 1997); CBI powers from **DSPE Act 1946**.
2. CVC = multi-member (CVC + ≤ 2 VCs), **4-yr/65**, removed by **President** (SC inquiry).
3. CBI Director appointed by a **PM + LoP + CJI** panel; **2-yr** security of tenure.
4. **CBI vs NIA**: NIA $\rightarrow$ terror; CBI $\rightarrow$ corruption/economic/organised crime.

MAINS ANGLE

STUDY LINK

CVC & CBI — Anti-Corruption Bodies —
 ADVANCED / COMPLETE $\rightarrow$ Must-Know
 Facts

HIGH

Foundation • ☐ Current linkGS-II Indian
Polity

NEWS TRIGGER

- ☐ CBI's "**caged parrot**" autonomy debate; **withdrawal of general consent** by many states (federal friction); **2021 amendments** allow **up to 5-year** tenures for CBI & ED chiefs via yearly extensions.

INTRO & ORIGIN

Exam-ready treatment of ☐ Current link.

Foundation learning layer: concepts $\rightarrow$ constitutional detail $\rightarrow$ UPSC application.

MAINS ANGLE

STUDY LINK

CVC & CBI — Anti-Corruption Bodies —
 ADVANCED / COMPLETE $\rightarrow$ ☐ Current link

HIGH

Advanced • Core Foundation

GS-II Indian
Polity

INTRO & ORIGIN

greater than **Subject:** Polity · **Tier:** Advanced (exam depth) · **GS Paper:** GS-II

Advanced learning layer: concepts → constitutional detail → UPSC application.

CORE FOUNDATION: RECALL MAP

Core Foundation

Dimension 1 greater than Subject: Polity · Tier: Advanced (exam depth) · GS Paper: GS-II	Dimension 2 greater than Grounded in: Indian Polity by M. Laxmikant, Ch. 59–60 (direct check of the local Sixth Revised Edition PDF).
Dimension 3 greater than □ = from source book · □□ = inference / case law · □ = current affairs.	Dimension 4 greater than Companion: basic/CVC-and-CBI.md.

STATIC THEORY

- greater than **Grounded in:** Indian Polity by M. Laxmikant, Ch. 59–60 (direct check of the local Sixth Revised Edition PDF).
- greater than □ = from source book · □□ = inference / case law · □ = current affairs.
- greater than *Companion: basic/CVC-and-CBI.md.*
- greater than
- greater than □□ **Note: Neither CVC nor CBI is a constitutional body.** CVC = **statutory since 2003**; CBI = ****not even**
- greater than statutory — **it runs on the Delhi Special Police Establishment (DSPE) Act, 1946**.**

MUST-KNOW FACTS

1. greater than = from source book · □□ = inference / case law · □ = current affairs.

MAINS ANGLE

STUDY LINK

CVC & CBI — Anti-Corruption Bodies —
ADVANCED / COMPLETE → Core
Foundation

HIGH

Advanced • PART A — CENTRAL VIGILANCE
COMMISSION (CVC) □□GS-II Indian
Polity

INTRO & ORIGIN

- Apex integrity/anti-corruption body of the Centre.

Advanced learning layer: concepts → constitutional detail → UPSC application.

PART A — CENTRAL VIGILANCE COMMISSION (CVC) □□: RECALL MAP

PART A — CENTRAL VIGILANCE COMMISSION (CVC) □□

Dimension 1 ☐ Apex integrity/anti-corruption body of the Centre.	Dimension 2 ☐ Established 1964 by an executive resolution, on the recommendation of the Santhanam Committee on
Dimension 3 Prevention of Corruption (1962–64).	Dimension 4 ☐ Originally neither constitutional nor statutory → given statutory status by the CVC Act, 2003

STATIC THEORY

- ☐ Established **1964** by an **executive resolution**, on the recommendation of the ****Santhanam Committee** on
- Prevention of Corruption (1962–64)**.
- ☐ **Originally neither constitutional nor statutory** → given **statutory status by the CVC Act, 2003**
- (□□ following the SC's **Vineet Narain / Jain Hawala case, 1997** directions).

MUST-KNOW FACTS

1. Apex integrity/anti-corruption body of the Centre.
2. Established **1964** by an **executive resolution**, on the recommendation of the ****Santhanam Committee** on
3. **Originally neither constitutional nor statutory** → given **statutory status by the CVC Act, 2003**

MAINS ANGLE

STUDY LINK

CVC & CBI — Anti-Corruption Bodies —
 ADVANCED / COMPLETE → PART A —
 CENTRAL VIGILANCE COMMISSION (CVC)
 □□

HIGH

Advanced · Composition □

GS-II Indian
Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

Point	Detail
☐ Structure	Multi-member: Central Vigilance Commissioner (chairperson) + not more than 2 Vigilance Commissioners
☐ Appointed by	President , on a 3-member committee: PM (head) + Union Home Minister + LoP (Lok Sabha)
☐ Term	4 years or 65 years , whichever earlier; no further govt employment after
☐ Removed by	President (proved misbehaviour/incapacity → SC inquiry)
☐ Salary parity	CVC = UPSC Chairman ; Vigilance Commissioner = UPSC member

MAINS ANGLE

STUDY LINK

CVC & CBI — Anti-Corruption Bodies —
ADVANCED / COMPLETE → Composition □

HIGH

Advanced · Powers & functions □

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Polity

INTRO & ORIGIN

Superintendence over the CBI (DSPE) only for Prevention of Corruption Act, 1988 offences (□ NOT all CBI work).

Advanced learning layer: concepts → constitutional detail → UPSC application.

POWERS & FUNCTIONS □: RECALL MAP

Powers & functions □

Dimension 1 Superintendence over the CBI (DSPE) only for Prevention of Corruption Act, 1988 offences (□ NOT all CBI work).	Dimension 2 Inquire into corruption complaints vs AIS + Group-A central officers.
Dimension 3 Whistle-blower authority under PIDPI Resolution (2004) & the Whistle Blowers Protection Act, 2014.	Dimension 4 Chairs the committee recommending the ED Director & (post-Lokpal Act 2013) CBI officers SP-and-above (except Director).

STATIC THEORY

- Inquire into corruption complaints vs **AIS + Group-A** central officers.
- **Whistle-blower** authority under **PIDPI Resolution (2004)** & the **Whistle Blowers Protection Act, 2014**.
- Chairs the committee recommending the **ED Director** & (post-Lokpal Act 2013) CBI officers **SP-and-above (except Director)**.
- **Civil-court powers; annual report** → **President** → **Parliament**. □□ Advisory — advice **not binding** (govt must record reasons if it disagrees).

MAINS ANGLE

STUDY LINK

CVC & CBI — Anti-Corruption Bodies —
ADVANCED / COMPLETE → Powers &
functions □

HIGH

Advanced · PART B — CENTRAL BUREAU OF INVESTIGATION (CBI) □□

GS-II Indian
Polity

INTRO & ORIGIN

- Set up **1963** by a **Home Ministry resolution**; recommended by the **Santhanam Committee**.

Advanced learning layer: concepts → constitutional detail → UPSC application.

PART B — CENTRAL BUREAU OF INVESTIGATION (CBI) □□: RECALL MAP

PART B — CENTRAL BUREAU OF INVESTIGATION (CBI)

□□



Dimension 1 □ Set up 1963 by a Home Ministry resolution; recommended by the Santhanam Committee.	Dimension 2 □ □ NOT a statutory body — derives powers from the Delhi Special Police Establishment (DSPE) Act, 1946.
Dimension 3 □ Main investigating agency of the Centre; assists the CVC & Lokpal.	Dimension 4 □ CBI vs NIA: NIA (post-2008 Mumbai attack) → terror; CBI → corruption, economic & organised crime (non-terror).

STATIC THEORY

- □ □ NOT a statutory body — derives powers from the **Delhi Special Police Establishment (DSPE) Act, 1946**.
- □ Main **investigating agency** of the Centre; assists the **CVC & Lokpal**.
- □ **CBI vs NIA**: NIA (post-2008 Mumbai attack) → **terror**; CBI → **corruption, economic & organised crime (non-terror)**.

MUST-KNOW FACTS

1. Set up **1963** by a **Home Ministry resolution**; recommended by the **Santhanam Committee**.
2. □ **NOT a statutory body** — derives powers from the **Delhi Special Police Establishment (DSPE) Act, 1946**.
3. Main **investigating agency** of the Centre; assists the **CVC & Lokpal**.
4. **CBI vs NIA**: NIA (post-2008 Mumbai attack) → **terror**; CBI → **corruption, economic & organised crime (non-terror)**.

MAINS ANGLE

STUDY LINK

CVC & CBI — Anti-Corruption Bodies —
 ADVANCED / COMPLETE → PART B —
 CENTRAL BUREAU OF INVESTIGATION
 (CBI) □□

HIGH

Advanced · Director of CBI — appointment (post-Lokpal Act 2013) □

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

Point	Detail
□ Appointed by	Central Govt on a 3-member committee : PM (chair) + LoP (Lok Sabha) + CJI or an SC judge nominated by him
□ Tenure	2-year security of tenure (CVC Act, 2003)
□ No LoP?	DSPE (Amendment) Act, 2014 → leader of the single-largest opposition party sits instead

MAINS ANGLE

STUDY LINK

CVC & CBI — Anti-Corruption Bodies —
ADVANCED / COMPLETE → Director of CBI
— appointment (post-Lokpal Act 2013) □

HIGH

Advanced · Director of CBI — appointment (post-Lokpal Act 2013) □

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INTRO & ORIGIN

□ □ **DSPE (Amendment) Act, 2021** — CBI Director's 2-yr term can be **extended annually up to a total of 5 years** (3 one-year extensions) — criticised for enabling govt influence.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK

CVC & CBI — Anti-Corruption Bodies —
ADVANCED / COMPLETE → Director of CBI
— appointment (post-Lokpal Act 2013) □

HIGH

Advanced · □ PMLA & the Enforcement Directorate (ED)

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

PMLA/ED area	UPSC takeaway
Attachment	Property linked to proceeds of crime can be provisionally attached subject to statutory process.
Arrest/search/seizure	Upheld in 2022 within PMLA's special framework.
Bail	Twin conditions under Sec 45 make bail more stringent.
Oversight debate	Due process, ECIR disclosure and political misuse remain contested.

MAINS ANGLE

STUDY LINK

CVC & CBI — Anti-Corruption Bodies —
ADVANCED / COMPLETE → □ PMLA & the
Enforcement Directorate (ED)

HIGH

Advanced • PMLA & the Enforcement Directorate (ED)

GS-II Indian Polity

INTRO & ORIGIN

greater than □ Grounded in M. Laxmikant *Indian Polity* + □□ standard + □ verified. Added to close a UPSC gap.

Advanced learning layer: concepts → constitutional detail → UPSC application.

□ PMLA & THE ENFORCEMENT DIRECTORATE (ED): RECALL MAP

□ PMLA & the Enforcement Directorate (ED)

Dimension 1 greater than □ Grounded in M. Laxmikant <i>Indian Polity</i> + □□ standard + □ verified. Added to close a UPSC gap.	Dimension 2 □ Laxmikant references the Prevention of Money Laundering Act, 2002 in the anti-corruption/vigilance ecosystem.
Dimension 3 □ PMLA, 2002 targets laundering of proceeds of crime; ED investigates, attaches property, searches, seizes and arrests under the Act.	Dimension 4 □ In <i>Vijay Madanlal Choudhary v. Union of India</i> (2022), the Supreme Court upheld major ED/PMLA powers including arrest, attachment, search/seizure and

STATIC THEORY

- □ Laxmikant references the Prevention of Money Laundering Act, 2002 in the anti-corruption/vigilance ecosystem.
- □ PMLA, 2002 targets laundering of proceeds of crime; ED investigates, attaches property, searches, seizes and arrests under the Act.
- □ In *Vijay Madanlal Choudhary v. Union of India* (2022), the Supreme Court upheld major ED/PMLA powers including arrest, attachment, search/seizure and twin bail conditions.
- □ The Court treated the ECIR as an internal ED document, not equivalent to an FIR for automatic supply.
- □□ ED's expanding role creates a recurring Mains theme: anti-money-laundering effectiveness vs civil liberties/federal misuse concerns.
- greater than □ Trap: ED is not the CBI; PMLA is a special money-laundering law with a distinct procedure.

MEMORY HOOK

greater than Trap: ED is not the CBI; PMLA is a special money-laundering law with a distinct procedure.

MUST-KNOW FACTS

1. greater than Grounded in M. Laxmikant *Indian Polity* + □□ standard + □ verified. Added to close a UPSC gap.
2. Laxmikant references the Prevention of Money Laundering Act, 2002 in the anti-corruption/vigilance ecosystem.

MAINS ANGLE

STUDY LINK

CVC & CBI — Anti-Corruption Bodies —
 ADVANCED / COMPLETE → □ PMLA & the
 Enforcement Directorate (ED)

HIGH

Advanced • UPSC Traps

GS-II Indian
Polity

INTRO & ORIGIN

Exam-ready treatment of UPSC Traps.

Advanced learning layer: concepts → constitutional detail → UPSC application.

UPSC TRAPS

WRONG: CVC/CBI are constitutional

CORRECT: CVC statutory (2003); CBI not even statutory (DSPE Act 1946).

WRONG: CVC is a single-member body

CORRECT: multi-member (CVC + up to 2 Vigilance Commissioners).

WRONG: CVC controls all of the CBI

CORRECT: superintendence over CBI **only for PC-Act 1988** offences; rest → **Central Govt.**

WRONG: The CBI Director selection panel is the same as the CVC's

CORRECT: CBI panel has the **CJI/SC judge** (CVC panel has the **Home Minister**).

WRONG: CBI can investigate anywhere freely

CORRECT: needs **state consent** (DSPE Act); many states **withdrew "general consent."**

WRONG: CVC's advice is binding

CORRECT: **advisory** (govt records reasons to differ).

WRONG: CVC term is 5 years

CORRECT: 4 years / 65.

MAINS ANGLE

STUDY LINK

CVC & CBI — Anti-Corruption Bodies —
ADVANCED / COMPLETE → UPSC Traps

HIGH

Advanced • CA hooks

GS-II Indian
Polity

NEWS TRIGGER

☐☐☐ **"Caged parrot"** — SC's 2013 remark (Coalgate) on the CBI's lack of autonomy; recurring **CBI independence/reform** debate. ☐ **Withdrawal of "general consent"** — several states have withdrawn or altered standing consent, requiring case-specific consent; the roster changes over time, so avoid memorising an undated count/list.

INTRO & ORIGIN

☐ **DSPE (Amendment) Act 2021 & CVC (Amendment) Act 2021** — enabled **up to 5-year** tenures for CBI & ED Directors via annual extensions.

Advanced learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

- ☐ Demand for a **statutory charter / separate CBI Act** to insulate it from executive control (2nd ARC, Parliamentary panels).

MAINS ANGLE**STUDY LINK**

CVC & CBI — Anti-Corruption Bodies —
ADVANCED / COMPLETE → ☐ CA hooks

HIGH**Advanced · Mains angles**GS-II Indian
Polity**INTRO & ORIGIN**

Exam-ready treatment of Mains angles.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

"The CBI is a caged parrot." Examine the structural causes of its lack of autonomy and suggest reforms. Withdrawal of general consent to the CBI: a symptom of eroding cooperative federalism? Multiplicity of anti-corruption bodies (CVC, CBI, Lokpal, ED) — synergy or turf war?

STUDY LINK

CVC & CBI — Anti-Corruption Bodies —
ADVANCED / COMPLETE → Mains angles

End of Register Notes — UPSC Agent / Copilot CLI